
LUMAD-LABAN: AN EXPOSITION AGAINST CORPORATIONS ON ENVIRONMENTAL DESTRUCTION

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Introduction

The term 'Lumad,' meaning 'born of the earth' or 'homegrown,' refers to the indigenous peoples of Mindanao, a region in the southern Philippines. This term collectively describes 15 to 18 distinct ethnolinguistic groups that have maintained their indigenous beliefs, remaining outside the influences of Islam and Christianity. Since 2010, military and paramilitary organizations in Mindanao have extrajudicially assassinated over 60 indigenous leaders.¹ Over 40,000 Lumad have been uprooted by the attacks, which nearly invariably occur before plantations and mining operations are established, according to the human rights organization Karapatan.²

The Lumads face a dire crisis where violence, displacement, and political marginalization converge to threaten their very existence. Violence from the Philippine military, corporate armies, and rebel groups results in brutal extrajudicial killings, fostering a culture of pervasive fear and forcing many Lumad to flee their ancestral lands. This displacement shatters their livelihoods, disrupts their education, and severs their connection to deeply rooted cultural practices. Further compounding their plight, the Lumad are excluded from political processes, leaving them voiceless and vulnerable. Most tragically, this relentless cycle culminates in the destruction of their environment. Large-scale mining and logging operations, often accompanied by heavy militarization, ravage their forests, rivers, and natural resources. This environmental annihilation is the most profound blow, erasing not just their means of survival but the very essence of their cultural identity, leaving their lives and heritage hanging by a thread.

Statement of the Problem

The operations of mining companies and enterprises pose a serious threat to the Lumad people's ancestral lands. Furthermore, environmental laws and regulatory frameworks that do not adequately safeguard these lands and the indigenous communities that live on them worsen this problem. The Lumad people's livelihoods and cultural legacy are under grave danger due to the displacement, which also poses serious environmental hazards that compromise local ecosystems' resilience and biodiversity.

¹ Espina-Varona, Inday, Lumad Children: War Targets in Ph's Last Frontiers, indayvarona (October 24, 2015), <https://indayvarona.wordpress.com/2015/10/24/lumad-children-war-targets-in-phs-last-frontier>

² *Id.*

Lumads and Ancestral Domain

Lumads face loss of land due to land grabbing and exploitation. Some communities have been forced out of their lands for resisting encroachment by mining, logging, and energy companies.¹ The Lumad people have a very strong sense of ownership over their ancestral lands, which they view as private community property with the right of community members to exploit any unclaimed area. These ancestral lands include fields under cultivation, forests, rivers, hunting places, and the mineral resources underneath.²

The Indigenous Peoples Rights Act (IPRA)³ was a legislative step towards protecting their rights, yet its implementation faces challenges due to the prevailing power dynamics and economic interests at play. The conflict is not merely a matter of land rights; it is also a clash of cultural values and a question of how to reconcile economic development with the preservation of indigenous ways of life. The Lumad struggle reflects a broader issue faced by indigenous communities globally: how to navigate the pressures of modernization and globalization while retaining a connection to their heritage and land.

Land, Laws and Loss

The foundation of Moro customary law, or *adat*, is the idea that total land ownership is unattainable. Islamic doctrine holds that God is the owner of the entire earth and that mankind are only His stewards. Therefore, rather than being based on ownership, the Moros' concept of land ownership was the right to its produce.

Numerous land regulations enacted by the American colonial authority allowed for the eviction of Moro and other indigenous people from all across the Philippines.⁴ These rules limited the amount of land that people and businesses could purchase and mandated land registration through titles. Unregistered land became

¹ Rina Chandran, Thomson Reuters Foundation. Driven from Home, Philippine Indigenous People Long for Their Land. ABS (June 2, 2024), <https://news.abs-cbn.com/focus/04/19/18/driven-from-home-philippine%20indigenous-people-long-for-their-land>

² Rodil, B. R., The Lumad and Moro of Mindanao. London: Minority Rights Group (1993), <https://minorityrights.org/app/uploads/2024/04/the-lumad-and-moro-of-mindanao.pdf>

³ An Act to Recognize, Protect and Promote The Rights Of Indigenous Cultural Communities/Indigenous Peoples, Creating A National Commission On Indigenous Peoples, Establishing Implementing Mechanisms, Appropriating Funds Therefor, And For Other Purposes, Republic Act No. 8371 (October 29, 1997) (Phil.).

⁴ Abaya-Ulindang, Faina C., Land Resettlement Policies in Colonial and Post Colonial Philippines: Key to Current Insurgencies and Climate Disasters in its Southern Mindanao Island (May 2015), https://www.iss.nl/sites/corporate/files/CMCP_54-Abaya-Ulindang.pdf

available for American and Filipino citizens to explore, inhabit, and buy.⁵

Many Moro people either chose not to register their lands or refused to do so because at first, few of them had the English literacy necessary to understand the land registration procedure. However, a few Moro leaders took advantage of the new legislation to register large areas under their own names, laying the groundwork for the Moro landed elite of today.⁶

The Lumad people are excluded from the previous political structure. They are unable to obtain the assistance they require to defend their ancestral lands due to language problems. The legislature ought to guarantee that every person has a voice and be more inclusive. Perhaps one of the reasons why educated indigenous people are marginalized is that they are afraid of standing out for their rights. This is an academic onslaught.

The large arable lands of Mindanao occupied by the Moro and Lumad people, which were sold or leased to settlers and plantation firms, were ignored by U.S. authorities, who acknowledged land claims from the Spanish era in the lowlands of Luzon and Visayas. Seven agricultural colonies were established by the colonial government between 1913 and 1917, with the intention of fostering "good working relations" between Christian settlers and indigenous Muslims. However, the true objective was to disperse peasant unrest in Luzon and drive out troublemakers from the northern and central Philippines. The native residents had ten (later reduced to eight) hectares of land, while Christian newcomers obtained bigger tracts—16 hectares. Any Moro opposition was put down by the Philippine Constabulary, which was primarily Christian.⁷ As a result, the Moros and Lumads on their own ancestral lands were reduced to destitute squatters.⁸

Whereas, this is incongruent with the court decision in the landmark case of *Mateo Cariño v. Insular Govt.*,⁹ Mateo Cariño, an Igorot from Benguet, adamantly defended his family's ownership of property they had farmed and lived on for more than fifty years. The court recognized Cariño's long-standing possession, albeit in the absence of official registration, and based its ruling on Spanish law. It made clear that ownership alone might be sufficient in certain cases, especially if it was supported by continuous use for long stretches of time.

⁵ *Id.*

⁶ *Id.*

⁷ Abaya-Ulindang, Faina C., Land Resettlement Policies in Colonial and Post Colonial Philippines: Key to Current Insurgencies and Climate Disasters in Its Southern Mindanao Island (May 2015), https://www.iss.nl/sites/corporate/files/CMCP_54-Abaya-Ulindang.pdf

⁸ Ocampo, Satur C., The Moro Land Problem., Philstar.com., <https://www.philstar.com/opinion/2011/03/12/664993/moro-land-problem>

⁹ *Carino v. Insular Government*, G.R. No. 2869, (March 25, 1907) (Phil.).

However, mining firms have aggressively expanded their activities in the current economic environment, frequently at the expense of vulnerable populations. In "Costly Dirty Money-Making Schemes,"¹⁰ Docena details the serious encroachment of mining firms on the Lumad people's traditional lands in the Philippines. According to the book, up to half of the places that these corporations have claimed coincide with regions that are thought to be ancestral grounds. Notwithstanding regulatory safeguards that demand approval from native populations prior to commencing mining operations, corporations frequently exploit their assets and clout to circumvent these laws.

One prominent offender named Nickel Asia Corporation is the wealthy Zamora family.¹¹ Through its four subsidiaries, which include operating interests in Taganito, Cagdianao, Tagana-an, and South Dinagat in Surigao del Norte—some of which are portions of the Lumad ancestral lands—this corporation dominates the nickel mining sector in the area. Philip T. Ang, the vice chairman of one of these subsidiaries, is one of the wealthiest people in the nation. Furthermore, a Japanese consortium led by Sumitomo Metal Mining Corporation, the country's top nickel producer, owns the majority of Coral Bay Nickel Corporation, in which Nickel Asia also has minority interests.¹² These subsidiaries exceeded the Department of Environment and Natural Resources' (DENR) budget in 2007 with a total net income of around ₱15 billion. Moreover, a sizeable share of the projected ₱0.3 billion to ₱1.7 billion in annual profits from their Mindanao project is expected to be earned by the Zamoras and their CDM venture partners.¹³ This significant financial impact highlights their power and demonstrates how the intricate network of interests within the mining industry exacerbates the Lumad people's predicament by causing environmental damage, community violence, and relocation.

The question is: How do they pervert the law?

Despite the legal protections enshrined in the Indigenous Peoples' Rights Act (R.A. No. 8371)¹⁴ and the Philippine Mining Act (R.A. No. 7942),¹⁵ companies

¹⁰ Docena, Herbert, *Costly dirty money-making schemes: The Clean Development Mechanism Projects in the Philippines*. Quezon City, Philippines: Focus on the Global South, Philippines Program (June 2010), <https://focusweb.org/wp-content/uploads/2017/04/CDM-Web-version-lowres.pdf>

¹¹ Lopez, Antonio, *The Troubleshooters*, Asiaweek (March 19, 1999), <http://www.cgi.cnn.com/ASIANOW/asiaweek/99/0319/nat1.html>

¹² *Id.*

¹³ *Id.*

¹⁴ An Act to Recognize, Protect And Promote The Rights Of Indigenous Cultural Communities/Indigenous Peoples, Creating A National Commission On Indigenous Peoples, Establishing Implementing Mechanisms, Appropriating Funds Therefor, And For Other Purposes, Republic Act No. 8371 (October 29, 1997) (Phil.).

¹⁵ An Act Instituting A New System of Mineral Resources Exploration, Development, Utilization, And Conservation, Republic Act No. 7942, (March 3, 1995) (Phil.).

like Nickel Asia Corporation often exploit loopholes and exert undue influence to bypass these regulations. R.A. No. 8371 mandates that any project affecting indigenous peoples' ancestral domains must secure their free, prior, and informed consent (FPIC). However, these companies frequently circumvent this requirement by leveraging their substantial financial resources and “political connections.”¹⁶ They manipulate the consent process, often securing agreements through coercion, misinformation, or by negotiating with illegitimate representatives not recognized by the community.

Additionally, the Philippine Mining Act (R.A. No. 7942), while promoting the rational exploration, development, and utilization of mineral resources, includes provisions that are supposed to ensure environmental protection and the equitable sharing of benefits with affected communities. Yet, enforcement is weak, and regulatory capture is rampant. Mining companies often neglect environmental safeguards, leading to severe ecological degradation, such as deforestation, water contamination, and habitat destruction, all of which are expressly against the protective measures outlined in RA 8371.¹⁷

The landmark decision in *La Bugal-B'laan Tribal Association, Inc. v. Ramos*, highlight these tensions. The court ruling interprets the constitutional provision regarding agreements with foreign-owned corporations for mineral exploration, development, and utilization (EDU). It rejects the notion that such agreements are restricted solely to technical or financial assistance, emphasizing that the term “involving” suggests a broader scope. The ruling underscores the State's ownership of mineral resources and its mandate for full control and supervision over their EDU. While foreign assistance in financial and technical aspects is allowed, the State must retain ultimate control to protect its interests. Upholding this control standard, the court deems the Philippine Mining Law and related regulations constitutional insofar as they pertain to financial and technical agreements.¹⁸ Despite the legal frameworks intended to protect them, the Lumad and other indigenous groups remain vulnerable to exploitation and environmental destruction due to the pervasive influence of powerful mining interests. The intricate web of corporate power and political leverage underscores the urgent need for robust enforcement of existing laws and genuine respect for the rights and welfare of indigenous peoples.

Conclusion

The suffering of the Lumad people in Mindanao serves as evidence that the

¹⁶ FPIC: A Shield or threat to Indigenous Peoples' Rights? (Accessed June 11, 2024), <https://minorityrights.org/app/uploads/2024/04/the-lumad-and-moro-of-mindanao.pdf>

¹⁷ *Id.*

¹⁸ *La Bugal-B'laan Tribal Association, Inc. v. Ramos*. G.R. No. 127882, <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/46804>

exploitation of indigenous populations for economic development is a global issue that also affects the Philippines. They are now uprooted from their native lands due to rapid modernization and industrialization, making them vulnerable to exploitation by strong interests. Respecting the rights of indigenous peoples who have lived on the land for many years is just as vital as economic advancement.

While it is impossible to stop Mindanao's development, there are things that can be done to help the Lumad population. Giving them access to tools like livelihood programs, legal assistance, and scholarships can lessen their difficulties and keep them safe from exploitation. Their claims to the remaining ancestral lands must also be honored in order to prevent foreign interests from further encroaching.

Furthermore, given the extensive ecological harm that has been done to Mindanao over time, protecting the ecosystem is of the utmost importance. Excessive structural development could worsen the state of the environment. An act of reconciliation that preserves the environment and pays tribute to the island's indigenous inhabitants is giving back what is left of the land to the Lumad people. In the interest of economic advancement, we respect the values of justice and sustainability by putting the rights and welfare of the Lumad community first and protecting their natural environment and cultural legacy.

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